

An Act

ENROLLED HOUSE
BILL NO. 3472

By: Kerbs of the House

and

Stanley of the Senate

An Act relating to environment and natural resources;
amending 27A O.S. 2021, Section 2-11-401.1, which
relates to definitions; modifying definition; and
providing an effective date.

SUBJECT: Environment and natural resources

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 27A O.S. 2021, Section 2-11-401.1,
is amended to read as follows:

Section 2-11-401.1. As used in the Oklahoma Used Tire Recycling
Act:

1. "ASTM" means the American Society for Testing and Materials;
2. "Automobile" means every motor vehicle of the type
constructed and used for the transportation of ten persons or less,
including the driver, or used for the transportation of property.
Provided, however, that the automobile's gross vehicle weight rating
does not exceed sixteen thousand (16,000) pounds;
3. "Automotive dismantler and parts recycler" means the same as
defined in Section 591.2 of Title 47 of the Oklahoma Statutes;
4. "Commission" means the Oklahoma Tax Commission;
5. "Department" means the Department of Environmental Quality;

6. "End use" means a Department-approved ultimate economic use for a used tire or tire-derived product, including granulated rubber, ground rubber, tire chips, tire-derived aggregate, tire-derived fuel and tire shreds;

7. "Fund" means the Used Tire Recycling Indemnity Fund;

8. "Granulated rubber" means particulate rubber composed of mainly nonspherical particles that span a broad range of maximum particle dimensions, from below four hundred twenty-five thousandths (0.425) of a millimeter (40 mesh) to twelve (12) millimeters (0.47 inches) pursuant to current ASTM standards;

9. "Ground rubber" means particulate rubber composed of mainly nonspherical particles that span a broad range of maximum particle dimensions, from below four hundred twenty-five thousandths (0.425) of a millimeter (40 mesh) to two (2) millimeters (0.08 inches) pursuant to current ASTM standards;

10. "Motorcycle" means a motor vehicle of a type defined in Section 1-135 of Title 47 of the Oklahoma Statutes;

11. "Motor-driven cycle" means a motor vehicle of a type defined in Section 1-136 of Title 47 of the Oklahoma Statutes;

12. "Motor vehicle" means the same as defined in Section 1-134 of Title 47 of the Oklahoma Statutes;

13. "Priority cleanup list" means a list, created and maintained by the Department, of:

- a. unpermitted dumps which did not exist when the owner took possession of the property where the tires are located, and were created without the consent of or benefit to the owner of the property, and
- b. such other tire dumps designated by the Department pursuant to Section 2-11-401.6 of this title;

14. "Reusable tire" means a tire that has been previously used on a vehicle, not currently mounted on a vehicle, but can be legally placed into service for vehicle use in Oklahoma;

15. "Semitrailer" means the same as defined in Section 1-162 of Title 47 of the Oklahoma Statutes;

16. "Tire" means any solid or air-filled covering for vehicle wheels;

17. "Tire chips" means pieces of scrap tires that have a basic geometrical shape and are generally between twelve (12) millimeters (0.47 inches) and fifty (50) millimeters (1.97 inches) in size and have most of the wire removed pursuant to current ASTM standards;

18. "Tire dealer" means any person engaged in the business of selling new and used tires to final consumers, not for resale;

19. "Tire-derived aggregate" means pieces of scrap tires that have a basic geometrical shape and are generally between twelve (12) millimeters (0.47 inches) and three hundred five (305) millimeters (12.01 inches) in size and are intended for use in civil engineering applications pursuant to ASTM standards;

20. "Tire-derived fuel" means whole tires or processed tires that can be used for energy or fuel recovery pursuant to current ASTM standards;

21. "Tire-derived fuel facility" or "TDF facility" means a facility that uses processed tires or whole used tires for energy or fuel recovery;

22. "Tire-derived product" means matter that:

- a. is derived from a process that uses whole tires as a feedstock, including chipping for the purpose of fuel recovery, granulating and grinding,
- b. adheres to established engineering or other appropriate specifications or to established product end-user specifications or customer conditions of acceptance,
- c. has a demonstrated benefit associated with the end use, and
- d. can be used as a substitute for or in conjunction with a commercial product or raw material;

23. "Tire shreds" means pieces of scrap tires that have a basic geometrical shape and are generally between fifty (50) millimeters

(1.97 inches) and three hundred five (305) millimeters (12.01 inches) in size pursuant to current ASTM standards;

24. "Trailer" means the same as defined in Section 1-180 of Title 47 of the Oklahoma Statutes;

25. "Used tire" means an unprocessed whole tire or tire part that can no longer be used for its originally intended purpose but can be beneficially reused as approved by the Department. Any used tire collected in accordance with the requirements of the Oklahoma Used Tire Recycling Act is not considered to be discarded. A tire that can be used, reused or legally modified to be reused for its original intended purpose shall not be a used tire;

26. "Used tire processing" means altering the form of whole used tires by shredding, chipping or other method approved by the Department, except baling ~~and pyrolysis~~. For purposes of this act only, tire pyrolysis shall, for a five-year period ending on July 1, 2031, meet the definition of used tire processing until July 1, 2031, but not thereafter. Any tire pyrolysis facility shall not be considered an advanced recycling facility but rather a used tire recycling facility and shall be subject to all applicable statutes and rules for such facilities;

27. "Used tire recycling facility" means any place which is permitted as a solid waste disposal site, in accordance with the Oklahoma Solid Waste Management Act, at which used tires are processed; and

28. "Vehicle" means the same as defined in Section 1-186 of Title 47 of the Oklahoma Statutes.

SECTION 2. This act shall become effective November 1, 2026.

Passed the House of Representatives the 25th day of March, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the 15th day of April, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____

Approved by the Governor of the State of Oklahoma this _____
day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____